

District-Chattogram

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Miscellaneous Case No. _____ of 2024

In the matter of:

An application under Sections 439 read with Section 435 of the Code of Criminal Procedure.

-And-

In the matter of:

Md. Sakandar Miah

.... Accused-Petitioner.

-Versus-

The State and others.

....Opposite-parties.

Mr. S.M. Sanour Hossain, Advocate.

.... For the accused-petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

....For the State

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 27th February, 2024

This application under Section 439 read Section 435 of the Code of Criminal Procedure at the instance of the accused of Session Case Nos.7259 of 2018, 3838 of 2018, 6311 of 2018, 6283 of 2018, 3222 of 2021 and 3042 of 2021 under Section 138 of the Negotiable Instrument Act, 1881 for transfer of above six Session Cases from

the Court of Metropolitan Joint Sessions Judge, 3rd and 5th Court, Chattogram to one competent Court of Metropolitan Joint Session Judge, Chattogram for expeditious trial.

Mr. S.M. Sanour Hossain, learned Advocate for the petitioner submits that the petitioner is the accused in six Sessions Cases being Session Case Nos.7259 of 2018, 3838 of 2018, 6311 of 2018, 6283 of 2018, 3222 of 2021 and 3042 of 2021 all under Section 138 of the Negotiable Instrument Act, 1881. Above six cases are pending for trial in two separate courts of Metropolitan Joint Session Judge, Courts Chattogram. The petitioner submitted a petition to the learned Metropolitan Sessions Judge for transferring all above six cases from the 3rd and 5th Courts of Metropolitan Joint Sessions Judge and sent those to one competent court of the Metropolitan Joint Sessions Judge for simultaneously trial. But the learned Metropolitan Sessions Judge most illegality and without appreciating the legal and factual aspects of above cases rejected above petition vide impugned judgment and order dated 17.05.2023 which is not tenable in law.

Mr. Sujit Chatterjee, the learned Deputy Attorney General appearing for the State and submits that since all six Sessions Cases are under Section 138 of the Negotiable Instrument Act, 1881 between the same parties the ends of justice will be better met if all

above six Sessions Cases are tried simultaneously by one competent court. The learned Metropolitan Session Judge has committed an error in treating the petition of the petitioner as an allegation against the learned Metropolitan Joint Sessions Judges in whose courts above cases are pending for trial and accordingly rejected above petition which is misconceived and not tenable in law.

We have considered the submission of the learned Advocate for the respective parties and carefully examined all materials on record.

It turns from the record that Session Case Nos.7259 of 2018, 3838 of 2018, 6311 of 2018, 6283 of 2018, 3222 of 2021 and 3042 of 2021 all under Section 138 of the Negotiable Instrument Act, 1881 are between the same parties but above six cases are pending for trial in two separate courts of Metropolitan Joint Sessions Judge under the same Session Division. Since all above cases are under the same provisions of the law and are between the same parties both time and money of both the parties will be minimized and conflicting findings by the learned Judges would be better avoided if all six cases are tried simultaneously by one competent court of the Metropolitan Joint Session Judge.

In above view of the materials on record we find substance in this petition under section 439 read with Section 435 of the Code of Criminal Procedure but the learned Metropolitan Sessions Judge has failed to appreciate above facts and relevant laws properly and erroneously passed the impugned judgment and order which is not tenable in law.

In the result, the impugned judgment and order dated 17.05.2023 passed by the learned Metropolitan Sessions Judge in Criminal Motion No.59 of 2023 arising out of Sessions Case Nos. Session Case Nos.7259 of 2018, 3838 of 2018, 6311 of 2018, 6283 of 2018, 3222 of 2021 and 3042 of 2021 are hereby set aside.

Session Case Nos.7259 of 2018, 3838 of 2018, 6311 of 2018, 6283 of 2018, 3222 of 2021 and 3042 of 2021 are withdrawn from the Metropolitan Joint Sessions Judge, Court No.3 and 5, Chattogram respectively and above cases are transferred to 4th Court of Metropolitan Joint Sessions Judge, Chattogram for simultaneously trial expeditiously.

Accordingly, the application under Section 439 read with Section 435 of the Code of Criminal Procedure is disposed of.

Communicate this order to the court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER